THIS KITCHEN FACILITIES USE AGREEMENT, is made as of _____ (the "Effective Date") by and between Culinary Block, a California limited liability company (hereinafter "Provider") and _____ (hereinafter "Client").

1. Services to be provided.

Provider is the property manager of the property located at 1901 Las Plumas Ave. Unit 30, San Jose, California (hereafter "Facility"). Provider agrees to provide the Client access to and use of the food processing and preparation facilities at Provider including use for the production of Client's products.

2. Operating, Term and Pricings.

The Facility will be shared by Clients and Provider's employees during the Client's rental times. The lease shall be for 6 months and continuing on a month to month basis until Client requests to terminate the lease (with 30 days notice) and vacates all Client owned equipment and property from the Facility. Client will be charged based on hourly usage of the Facility with pricing chart shown below. The minimum monthly charge is 20 hours of kitchen time ($1,000).

Tiered Hourly Rate System

First 1-20 hours	$50/hour
Hours 21-100	$40/hour
Hours >100	$30/hour

$35/hour rate for exclusive off-peak use between the hours of 7:00 PM – 7:00 AM. The discounted rate does not apply if you operate during any regular business hours during the month.

The hourly rate includes use of the following amenities at the Facility:

- Burner Stoves, under stove ovens
- Fryers
- Griddle
- Char Broiler
- Ice Machine
- Prep Table
- Cold Storage – 4 ft shelf
- Dry Storage – 4 ft shelf
- Electricity, gas, and water
- 24/7 Security Video Surveillance
- 24/7 Kitchen Access
- Internet Wi-Fi
- Parking (no overnight)
- Hand soap and disposable towels
- Dish soap and sanitizer
- 3-compartment sink
- Hand sinks
- Men's & Women's Restrooms
- Garbage and Recycling
- Grease Disposal

If additional table, storage, or Facility usage more than the quantity listed above is needed, the Client will incur the following charges per month:

- Dry Storage - $50/shelf, $250/rack
- Cold Storage - $100/shelf, $500/rack
- Undercounter 2-door refrigerator - $200
- Standing Refrigerator - $125/door
- Standing Freezer - $50/shelf, $150/door, $400 full 3-Door freezer
- Large rack oven - $100/month minimum. Adjusted based on heavy use
- Proofer - $100
- Extra Table - $100
- Dough sheeter – $75
- Blast Chiller - Based on estimated usage
- Overnight vehicle parking - $300

Client owned refrigerators and electrical equipment will incur additional charges at the discretion of the Provider.

Unauthorized usage of any Facility equipment will result in a fine of the hourly cost of the equipment plus 50% penalty.

3. Deposit.

Upon execution of this agreement, Client must deposit with Provider a check for $2,000 for security deposit or 1 month's rent (whichever is greater) to be used to repair any damage beyond ordinary wear and tear caused by the Client and any cleaning that is required of Client's rented space. The security deposit is returned the Client after the completion of their last working day in the Facility and after all invoices.

If the Client executes this agreement and requests to terminate the agreement before using the Facility, a fee of $250 will be charged and the Provider will reimburse the remainder of the deposit.

In the event the Client defaults on any of the terms, provisions, or conditions of the agreement, including but not limited to payment of the rent, Provider may use, apply or retain a portion of the deposit for payment of any rent in default, damage to the Facilities, cleaning, or unnecessary expenses incurred by Provider. After the Client has vacated the premises, Provider has 14 days to make an inspection of the Facilities. If the Client has left the Facilities clean, undamaged, without any outstanding rent charges, and fully comply with the Provider with all the terms, provisions, and conditions of the lease, the security deposit shall be refunded to the Client. In the event the cost of cleaning and repairs of the Facilities exceed the amount of the deposit total, the Client shall pay the excess within 10 days of written notification by Provider.

4. Payment.

The Client authorizes Provider to bill for the use of the Facility, and to make any charges relating to facility rental and/or any other services offered by Provider, to Client's account. Monthly rent payment for the previous month's hourly usage will be invoiced to the Client with payment terms net 10 days. Provider allows a grace period of 5 days. Failure to pay rent in a timely manner will result in a late payment fee of $100 for each day.

5. Management and Scheduling.

Provider retains the exclusive right, in its sole discretion, to manage and schedule the Site, including, without limitation, the establishment of appropriate policies and procedures for use of the Site. Client agrees to comply with such policies and procedures as they are adopted and updated from time to time by Provider. If Client requires additional table, storage, or equipment use beyond the terms of this Agreement, the Client must make such request no less than 7 days in advance. Approval of additional usage is at the sole discretion of the Provider. Provider retains unilateral discretion with respect to the identification and selection of users for the Site for times and uses other than those contracted for herein.

If upon arrival, the Client finds the scheduled equipment or facilities inoperable or unusable through no fault of their own, the Client will not be charged for the unusable scheduled time. Client shall indemnify, hold harmless and defend Provider for, from and against any claim, cost, liability, cost or expense related to or arising out of the selection or scheduling of other users of all or a portion of the Site, without regard to the nature of any such claim, cost, liability, cost or expense.

Except as agreed in writing by the parties hereto, Provider shall have no obligation, and Client shall have no right, to make any improvements or changes to or involving the Facility. In providing the Facility to Client hereunder, Provider shall have no obligation to pay any amount (other than amounts to be reimbursed by Client in accordance with this Agreement) or incur any other obligation or liability in order to permit its provision of the Facility.

Upon Provider's written notice, Client shall discontinue use of and remove particular equipment and other items placed at the Facility by Client immediately but no later than within 24 hours. All property, real or personal, or any interest therein, located at the Facility shall be and remain the property of Provider, and Client shall have no rights or interests therein, or in any other, equipment, furniture, products, supplies, data, writings or other property of Provider.

6. Cancellation and Related Charges (Reservations only)

Reservations for Provider kitchen facility rental may be cancelled up to 72 hours in advance without penalty. Cancellation within 72 hours will be subject to re-booking charge equal to 50% of the total estimated rental fee. Cancellation with less than 24 hours notice will be subject to a re-booking charge equal to 100% of the estimated rental fee. Provider reserves the right to enforce this cancelation policy at its sole discretion.

7. Production Responsibilities.

Client assumes all production risks in connection with Provider's Facility and equipment including, but not limited to, any failure of equipment during Clients use of such food processing facility and equipment. Under no circumstances shall Provider be liable to the Client for any failure to meet volume production, expected quality and/or any other failure of the production process including but not limited to the failure of any particular piece of equipment or machinery.

8. Security.

Provider assumes no responsibility for the security of any equipment or supplies provided by Client for use at the Facility. Any additional security of storage arrangements shall be Client's sole responsibility. Security cages and locks can be provided and used by the Client if the Client decides to lock their storage shelves.

9. Liability of Client and Indemnity.

Provider shall not be liable for any damage to either person or property sustained by Client or any third party arising in any way out of the Client's use, operation, or occupancy of the Facility, or the sale or distribution of any product manufactured at the Facility. The Client covenants and agrees to indemnify, defend and hold harmless Provider, its owners, investors, agents, and employees from any and all claims, costs and liabilities arising from or in connection with: damages or injuries to persons (including death) or property in, upon, or about the Facility, any portions thereof, or resulting from the sale, distribution, consumption and other use of any service provided or product manufactured at the Facility for or by the Client.

10. Damages to Provider Property.

The Client shall be responsible for any and all damages to the Facility or equipment caused by its use of the Facility or its equipment by Client, its agents, employees or guests to the extent the damages are not covered by valid and collectible insurance available to Client or Provider.

11. Video/Audio Surveillance.

Client acknowledges that Provider has installed video/audio surveillance on its premises, and all areas of the Facility will be recorded at all times. Facial recognition software may be used for tracking kitchen usage. Client's members and employees are required to register in the facial recognition software.

12. Insurance.

The Client shall maintain general liability insurance with minimum coverage of $1,000,000. The Client shall cause its insurance carrier to name Provider as additionally insured:
Culinary Block LLC
1901 Las Plumas Ave STE 30
San Jose, CA 95133

The Client shall provide a certificate of insurance satisfactory to Provider prior to Client's use of the Facility, and subsequently as requested by Provider. Provider and Client are each responsible for insuring their own property and each party agrees to waive rights of subrogation against the other in respect to insurance required or available for loss to their property.

Client must have workers compensation insurance covering all Client's employees performing work on the premises. Provider is not responsible for insurance claims of injuries on the premises by the Client, or Client guests or employees.

13. Food and Equipment Safety and Sanitation.

The Client is responsible for operating their food business in compliance with all local county, state and federal rules and regulations. The Provider food premise license requires that personnel be on-site at all times that have successfully completed a food safe handling course recognized by the Dept. of Health for a commercial kitchen. Provider may request copies of Food Safe Handling Certificates at any time deemed necessary by Provider. The Client agrees to abide by all Provider cleaning and sanitation policies & procedures.

Posted documents: Health permit, Business license, Food Manager certificate, Resale license if applicable

14. Trash Removal and Cleaning usage area.

The Client is responsible for any trash or debris accumulated in their table area, dry storage, and cold storage during their kitchen usage. The Client agrees to leave their work area in a clean condition and dispose of all trash in the proper trash, recycling, grease, and compost receptacles in the designated area. Please report areas of dirtiness left by other Clients to the Provider and photograph for documentation.

15. Signs and Advertising.

No signs or other advertising material shall be attached, displayed or painted on the Facility without prior written approval of Provider. Client allows Provider to use Client's logo and website link for cross-promotional purposes at the Facility and Provider's website unless otherwise agreed upon. Client shall be solely responsible for obtaining any permits or governmental authorizations for any signs.

16. Default.

Client shall abide by the terms of this Agreement. A violation, breach or failure to keep or perform any conditions of this Agreement may result in lease termination. Failure of the Client to rectify violations within 24 hours after notification by Provider may result in Provider declaring the Client's rights terminated. Furthermore, Provider may possess and remove Client's property from the Facility. Client will be charged any reasonable storage or disposal costs.

17. Assignment.

This Agreement is solely between Provider and Client. Client shall not assign its rights under this Agreement. However, the Provider reserves the right to delegate or assign its obligations and interests in the Facility.

18. Termination.

Upon termination of the lease, the Client must vacate the Facility and remove all personal property and equipment. The Provider shall return the security deposit to the tenant within 30 days after the lease termination date, provided that:

1. The Client has paid all outstanding invoices and charges owed to the Provider, including but not limited to rent, utilities, and cleaning fees.
2. The Client has removed all personal property from the premises. Any property left at the Facility for more than 30 days after the lease termination date will be considered abandoned and will become the property of Culinary Block LLC.
3. The Client is responsible for any charges or fees due from external vendors, customers, and business entities for up to one year after the lease termination date. The Provider may deduct any outstanding charges or fees from the security deposit before returning the remaining balance

The Client agrees to hold the Provider harmless from any claims, damages, or expenses arising from the Client's failure to comply with the terms of this clause.

Notwithstanding any provision in this Agreement, Provider may, in Provider's sole and absolute discretion, terminate this Agreement without further liability by delivering thirty (30) days prior written notice to Client. If the Client requests to terminate the lease prior to the end of the lease Agreement, the Provider will charge a termination fee of one month's minimum rent of $400.

Short term lease (less than 6 months) Cancellations: Scheduling reservations for Provider kitchen facility rental may be cancelled up to 7 business days in advance without penalty. Cancellation within 7 business days will be subject to a penalty equal to 50% of the total estimated rental fee. Cancellation with less than 24 hours notice will be subject to a penalty equal to 100% of the estimated rental fee. Provider reserves the right to enforce this cancelation policy at its own discretion.

19. No Waiver.

The failure by Provider at any time to enforce any right or remedy available to it under this Agreement or otherwise with respect to any breach or failure by Client shall not be construed as a waiver of such right or remedy by Provider.

20. Authority.

Each signatory to this Agreement represents and warrants that s/he has the full authority to enter into this Agreement for Provider and Client.

21. Attorneys' Fees.

If the services of an attorney are required by Provider to secure the performance of Client under this Agreement or otherwise upon the breach or default by Client of this Agreement, or judicial action is necessary to enforce or interpret any provision of this Agreement, and further in the event that Provider is the prevailing party, Provider shall be entitled to reasonable attorneys' fees and expenses, in addition to any other relief to which Provider may be entitled.

22. Acceptance.

Client hereby acknowledges that it has been offered the opportunity to independently examine and evaluate the Facilities and shall continue to do so throughout the term of this Agreement. Client further acknowledges that Provider has made no attempt to make the Facilities useful or fit for any purpose for any particular Client, or for uses other than those intended by Provider. THEREFORE, CLIENT ACCEPTS THE FACILITIES "AS IS" AND PROVIDER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, WARRANTIES OF MERCHANTABILITY, SUITABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR RESULTS TO BE DERIVED FROM THE USE OF THE FACILITIES BY CLIENT OR OTHERS. The provisions of this Section 22 shall survive termination of this Agreement for any reason.

23. Entire Agreement.

This Agreement shall constitute the entire agreement between the parties and any prior understanding or representation of any kind preceding the date of this Agreement shall not be binding on either party, except to the extent incorporated in this Agreement.

Client:	Provider: Culinary Block LLC
X: _____	X: _____
Print Name:	Print Name: Douglas Lum
Title:	Title: Owner
Date:	Date: